

IN THE _____ COURT OF _____, ARKANSAS
_____ DIVISION

STATE OF ARKANSAS PLAINTIFF

vs. Case No. _____

(First, Middle, and Last name) DEFENDANT

ORDER OF PROBATION UNDER
ACT 346 of 1975 ACA §16-93-301 through 303 and
ACT 1460 OF 2013 A.C.A.16-90-1401, Et. Seq.

1. Now on this _____ day of _____, _____, the
Defendant enters a plea of guilty or nolo contendere to the charge(s)
of _____

A Class _____ ☐ felony ☐ misdemeanor in violation of A.C.A. § _____.

2. The offense was not a sexual offense as defined by ACA §5-14-101 et seq. nor was it a serious felony involving violence nor a felony involving violence as provided in ACA §5-4-501.
3. The Court, without making a finding of guilt or entering a judgment of guilty, and with the consent of the Defendant, takes the case under advisement and places the Defendant on probation for _____. (Not less than one (1) year)
4. Sentencing took place after July 31, 2007. A fine of \$ _____ (not to exceed \$3500.00) is hereby imposed. A term of imprisonment is not imposed.

IN THE _____ COURT OF _____, ARKANSAS
_____ DIVISION

STATE OF ARKANSAS PLAINTIFF

vs. Case No. 24-CR-001234

(First, Middle, and Last name) DEFENDANT

ORDER OF PROBATION UNDER
ACT 346 of 1975 ACA §16-93-301 through 303 and
ACT 1460 OF 2013 A.C.A.16-90-1401, Et. Seq.

1. Now on this _____ day of _____, _____, the
Defendant enters a plea of guilty or nolo contendere to the charge(s)
of _____

A Class _____ ☐ felony ☐ misdemeanor in violation of A.C.A. § _____.

2. The offense was not a sexual offense as defined by ACA §5-14-101 et seq. nor was it a serious felony involving violence nor a felony involving violence as provided in ACA §5-4-501.
3. The Court, without making a finding of guilt or entering a judgment of guilty, and with the consent of the Defendant, takes the case under advisement and places the Defendant on probation for _____. (Not less than one (1) year)
4. Sentencing took place after July 31, 2007. A fine of \$ _____ (not to exceed \$3500.00) is hereby imposed. A term of imprisonment is not imposed.

- 5. Prior to this date, the defendant had not been convicted of a felony.
- 6. The Defendant ☐ **does** or ☐ **does not** have felony charges pending in any state or federal court. If charges are pending, the current status of those charges is: _____
- 7. The Defendant is placed on probation pursuant to the provisions of Act 346 of 1975, A.C.A. § 16-93-301 through 303, which provides for the deferring of proceedings pending the Defendant's conduct under the conditions of probation.
- 8. At the end of the probationary period, or upon release by the Court prior to that time, the Court will review the Defendant's compliance with the Court's terms of probation.
- 9. If the Defendant has demonstrated rehabilitation and has fulfilled the terms and conditions of probation, then upon Petition, an Order will be entered dismissing the case, discharging the Defendant without an adjudication of guilt and sealing the record.

IT IS SO ORDERED

Judge's Signature

Judge's Printed Name

Date

THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER IDENTIFICATION OF THE DEFENDANT IN THE STATE AND NATIONAL RECORD SYSTEMS

Race _____ Arrest Tracking Number _____

Sex _____ SID No. _____

DOB _____ FBI No. (if known) _____

- 5. Prior to this date, the defendant had not been convicted of a felony.
- 6. The Defendant ☐ **does** or ☐ **does not** have felony charges pending in any state or federal court. If charges are pending, the current status of those charges is: _____
- 7. The Defendant is placed on probation pursuant to the provisions of Act 346 of 1975, A.C.A. § 16-93-301 through 303, which provides for the deferring of proceedings pending the Defendant's conduct under the conditions of probation.
- 8. At the end of the probationary period, or upon release by the Court prior to that time, the Court will review the Defendant's compliance with the Court's terms of probation.
- 9. If the Defendant has demonstrated rehabilitation and has fulfilled the terms and conditions of probation, then upon Petition, an Order will be entered dismissing the case, discharging the Defendant without an adjudication of guilt and sealing the record.

IT IS SO ORDERED

Judge's Signature

Judge's Printed Name

Date

THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER IDENTIFICATION OF THE DEFENDANT IN THE STATE AND NATIONAL RECORD SYSTEMS

Race _____ Arrest Tracking Number _____

Sex _____ SID No. _____

DOB 1991-04-17 FBI No. (if known) _____